

25NWCV02343 25NWCV02343

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CD%2C09%2F21%2F2026

Source SHA-256: 857e21743aab97f9b8c7d312690a72c2660adb600ec7d8131625e1ee6a24ca48

Case Number: 25NWCV02343 Hearing Date: September 21, 2026 Dept: D

RAMON MOLINA V. MICHAEL

HAKIMI

CASE NO.: 25NWCV02343

HEARING: 09/22/2026 @ 9:30 a.m.

#11

TENTATIVE ORDER

The Motion for Judgment on the Pleadings is GRANTED WITHOUT LEAVE TO AMEND.

The clerk will give notice.

Plaintiff Ramon Molina, in propria persona, filed this action against Defendant Michael Hakimi a on June 27, 2025. The only allegation stated on the Judicial Council Form Complaint is that "wrongfully implanted when I was undeager & more as we gone along the years mini speaker min micerphone & GPS and some to rout my insides His ex wife of sister monica also told me of it."

The Court noted that there were no appearances entered at the Case Management Conferences held on November 21, 2025, January 26, 2026 and June 24, 2026.

On January 26, 2026, the Court set an Order to Show Cause Re: Dismissal for Plaintiff's Failure to Appear on 11/21/25/Pursuant to CCP §438(c)(3)(b) for

June 24, 2026.

At the hearing on June 24, 2026,
the Court noted that no appearances were entered by the parties and no Case Management Statement had been filed. The
Court, on its own motion, set the matter for a Motion for Judgment on the Pleadings pursuant to Code of Civil Procedure section 438. The Order to Show Cause Re Dismissal for Plaintiff's Failure to Appear on 11/21/25, 1/26/26 and 6/24/26/Pursuant to CCP §438(3)(b) was continued to September 22, 2026.

As of September 22, 2026,
Plaintiff has not filed any documents in response to the Court's order and has not filed proof of serving Defendant. According
to Code of Civil Procedure section 438, subdivisions (b)(2) and (c)(3), "[t]he court may upon its own motion grant a motion for judgment on the pleadings" on the basis that "the complaint does not state facts sufficient to constitute a cause of action against that defendant."

Here, there are no causes of action specified on the Form Complaint and the allegations are composed of a single handwritten sentence. Plaintiff has not filed any papers to clarify the basis for his claims and, thus, has not shown that amendment will cure this defect.

Accordingly, the Court's Motion
for Judgment on the Pleadings is GRANTED WITHOUT LEAVE TO AMEND.